

Fewer notices, or fewer illegalities?

*Testing a public claim about planning enforcement in Malta
against twenty years of annual reports*

THE CLAIM UNDER REVIEW

***“We had times when we issued over 1,000
enforcement notices per year.”***

Johann Buttigieg, Planning Authority CEO, The Malta Independent, 7 September 2025.
Now around 200, which he attributed to fewer illegalities.

VERDICT: MISLEADING

Accurate figures; the explanation leaves out how cases are now handled

Version 1.2 · 5 October 2026

Status: draft for right of reply (Planning Authority)

Prepared from public sources and annual reports.

Repository: github.com/leandergrech/Mizien

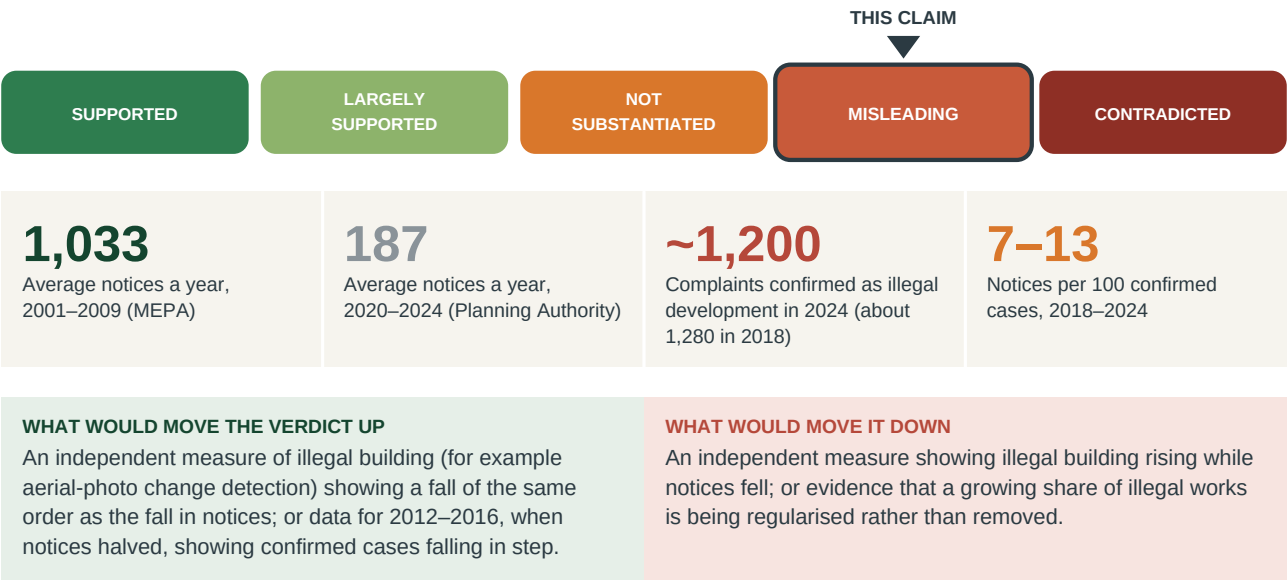
MIZIEN · AN INDEPENDENT FACT-CHECKING PROJECT

Contest a verdict, with evidence: github.com/leandergrech/Mizien/issues

TL;DR

In September 2025 the Planning Authority’s chief executive, Johann Buttigieg, told The Malta Independent: **“We had times when we issued over 1,000 enforcement notices per year.”** The newspaper reports that he said the number had fallen to around 200, **which he put down to there being fewer illegalities:** “people have recognised that it does not make sense to build illegally.” We tested both parts against MEPA and Planning Authority annual reports for 18 of the 24 years from 2001 to 2024, including every year since 2017.

- 1 **Both numbers are right.** MEPA issued over 1,000 notices in five of the eight years we could read between 2001 and 2009 (1,369 in 2001). The Planning Authority’s own reports give 164–233 a year from 2018 to 2024; the 2020–2024 average is 187.
- 2 **Complaints did not fall the same way.** Notices fell 82%. Complaints of illegal development averaged about 2,860 a year in 2017–2024, more than in 2009 (2,701) or 2011 (2,105); only financial year 2004/05 (3,705) was higher (Figure 1).
- 3 **Confirmed illegal works are about where they were in 2018.** About 1,280 complaints were confirmed as illegal development in 2018 and about 1,200–1,250 in 2024. The fall of about a third since 2020 is measured from a 2020–21 peak of about 1,820–1,880 (Figure 2).
- 4 **What changed is how cases end.** Since 2018 only 7 to 13 in every 100 confirmed cases led to a notice; most ended in an application to sanction the works or removal by the owner. The Authority says so itself: it issues notices “only where contraveners are uncooperative” (2018 and 2019 reports).
- 5 **Verdict: misleading (moderate confidence).** The figures are accurate, but presenting the fall in notices as a sign of fewer illegalities leaves out the main documented reason: a change in how the Authority handles them. Complaints are only a proxy for illegal building, and 2012–2016, when notices halved, is still missing.



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1 The claim and what we could verify

The claim comes from an interview with The Malta Independent on Sunday, published on 7 September 2025 [1], which we read in full. The interview took place during public consultation on planning bills and legal notices that would allow some illegal developments to be regularised. We assess the chief executive’s words as reported, not the headline.

What was said	Form	Our access
“We had times when we issued over 1,000 enforcement notices per year.”	Direct quote [1]	Read in full
Now reduced to around 200, “due to there being fewer illegalities”	Newspaper’s paraphrase [1]	Read in full
“I would say that over the last 20 years, people have recognised that it does not make sense to build illegally.”	Direct quote [1]	Read in full
Over 500 enforcement notices pending, over 5,000 cases for direct action; 1,500 illegalities removed by direct action over 30 years; clearing the backlog at the current rate “would take us more than 90 years”.	Direct quotes and paraphrase [1]	Read in full

FAIRNESS NOTE

In the same interview the chief executive acknowledged that the Authority had “struggled” with enforcement and that there were “too many illegalities for the PA to enforce on everything”. The Authority has described its persuasion-first strategy openly in every annual report since 2017 (Section 3), and many cases now end with the owner removing or legalising the works without a notice. This check is about whether fewer notices shows fewer illegalities, not about whether the strategy is right.

2 Method

Question. Is the fall from over 1,000 notices a year to about 200 accurate, and does the evidence show that it reflects fewer illegalities?

Evidence. We read the enforcement sections of the MEPA annual reports for 2004 to 2011 [2–8] and of every Planning Authority annual report from 2017 to 2024 [9–16]. The 2017–2023 reports are published only on Issuu; we downloaded their page images by script, read the Compliance and Enforcement Directorate pages, and recorded every value with its printed page, the image address and the image’s SHA-256 checksum (the images are not stored). Version 1.1 used news reports for 2019–2023; the primary values agree except for 2019 notices (229, not the 228 we had derived) and 2023 complaints (2,463 received; the 2,456 reported in the news is the number closed). Every number is in *data/cc-014/* and every percentage is recomputed with *tools/cc-014-report/calc.py*. We searched Crossref and OpenAlex for studies of planning enforcement in Malta and found none; the regulatory literature [19–21] is context.

Confirmed cases. Each year the Authority reports the share of complaints in which it found illegal development (about half to 59%) and how those cases ended. We multiply the stated share by complaints received. The reports are not always consistent: in 2019 the outcomes add up to 51% of complaints closed rather than received, and in 2023 to 48% against a stated 58%. Where removals are given only as a percentage (2020–2022) or as “the rest of the cases” (2018), we derive a count. Confirmed cases are therefore approximate.

Grades. Annual reports and official answers are grade C (official statistics). News reports of them are grade C but second-hand. **Verdicts** follow the five-point scale in Appendix A.

3 What a notice measures

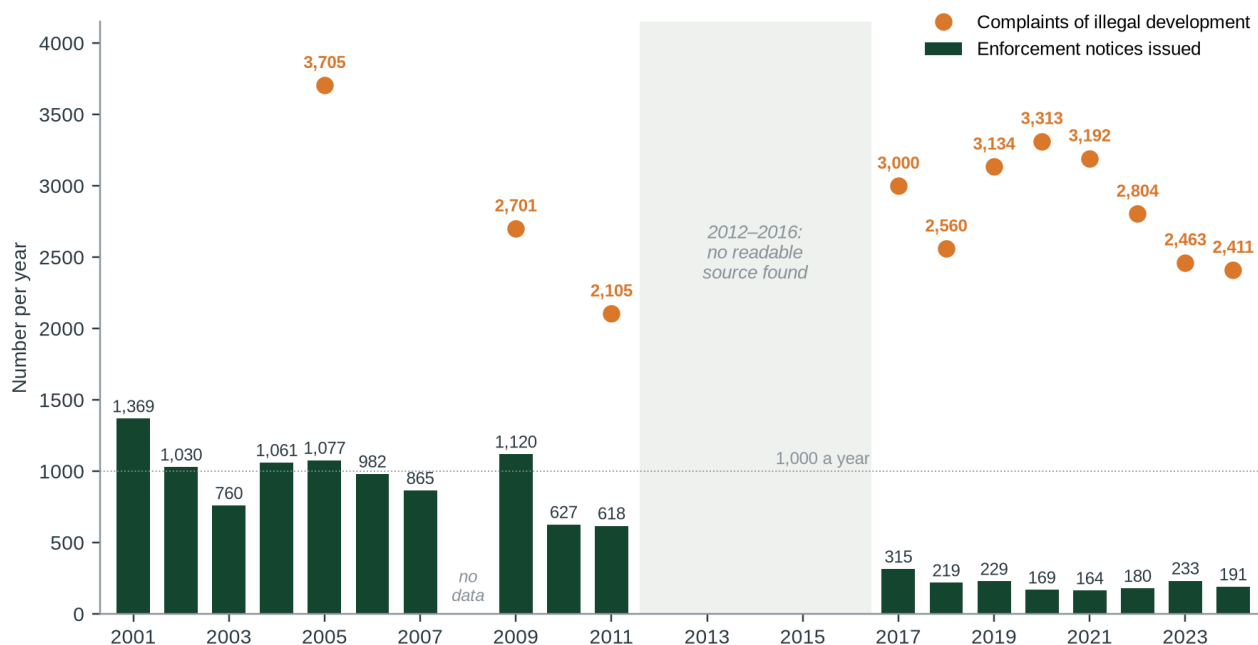
An enforcement notice is something the regulator does: it records the Authority acting on an illegality it has found. The number issued depends on how many illegalities exist, how many are reported or detected, and how the Authority chooses to deal with them. If the Authority settles more cases by other means, notices fall even if illegal building does not. Counting notices as if they measured the underlying problem is the pattern our methodology calls *input as outcome*.

The Authority’s own explanation. Its annual reports describe the change openly. In 2017 it wrote of a gradual shift “away from a total Enforcement system”, with fewer notices and, it said, “a positive shift in compliance and self-regulation” [10, p. 18]; no measure of that shift is given. In 2018 and 2019 it said the low number of notices was “in line with the strategy adopted by the Directorate to issue notices only where contraveners are uncooperative” [11, p. 20; 12, p. 18]. From 2020 it describes resolving infringements “through other means which are more efficient” [13, p. 28], and in 2022 calls persuasion “the main strategy” [15, p. 24]. This explains the fall in notices on the Authority’s own terms and supports the chief executive’s account of a deliberate change. It does not show that illegal building has fallen.

Regulatory research supports both sides of the trade-off. Reviews of environmental enforcement find that inspections and sanctions deter future violations, both by the firm sanctioned and by others [19]. The “responsive regulation” tradition argues that regulators should start with persuasion and escalate only when that fails [20, 21]. Neither body of work treats a fall in sanctions as evidence, on its own, of a fall in violations.

4 What the data show

Notices fell by four-fifths; complaints of illegal development did not

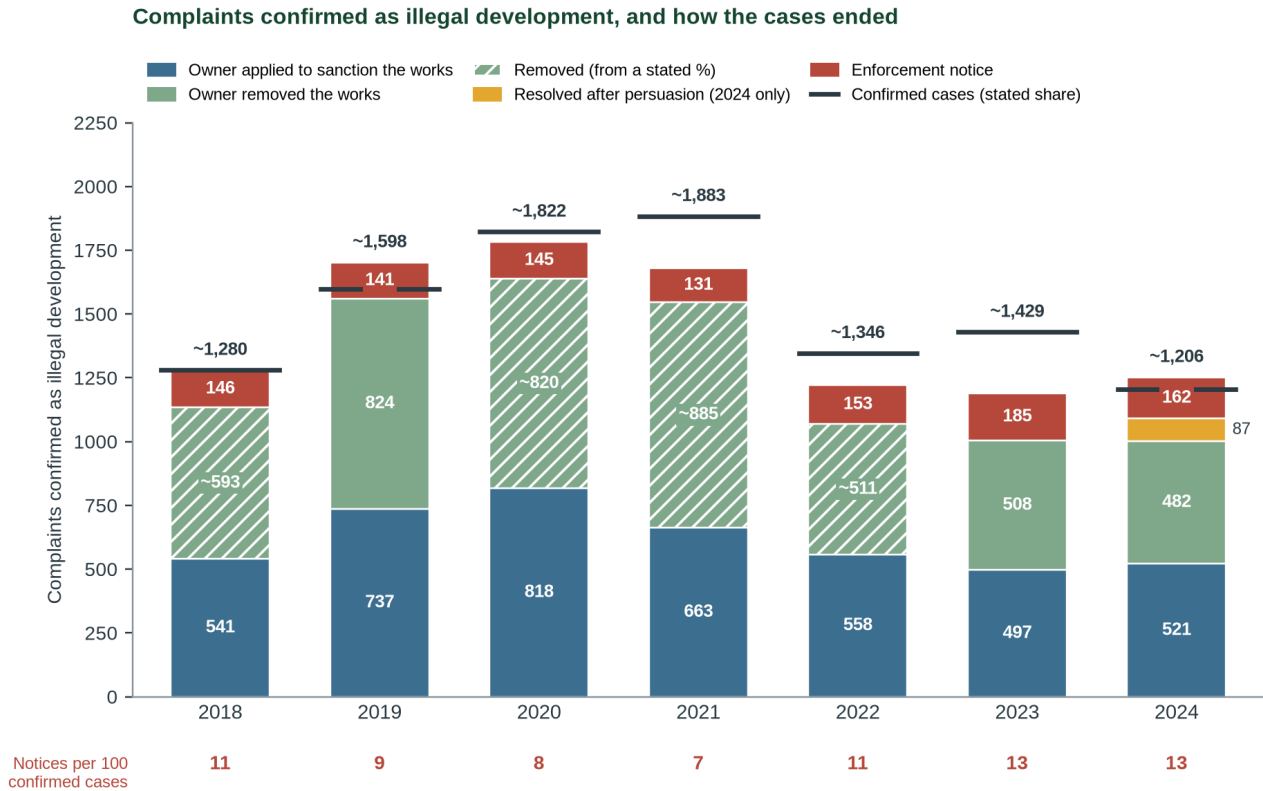


Sources: MEPA annual reports 2004–2011 (notices 2001–2011); Planning Authority annual reports 2017–2024 (2017–2023 read as page images). Complaints: 2005 is financial year 2004/05; 2011 excludes sites already under a notice; 2017 is rounded in the report; 2018 excludes 1,572 construction-site complaints counted separately; 2019 includes complaints under the third-party-damage regulations.

Figure 1. Enforcement notices issued (bars) and complaints of illegal development (dots), 2001–2024 [2–16]. Complaints did not fall in step with notices.

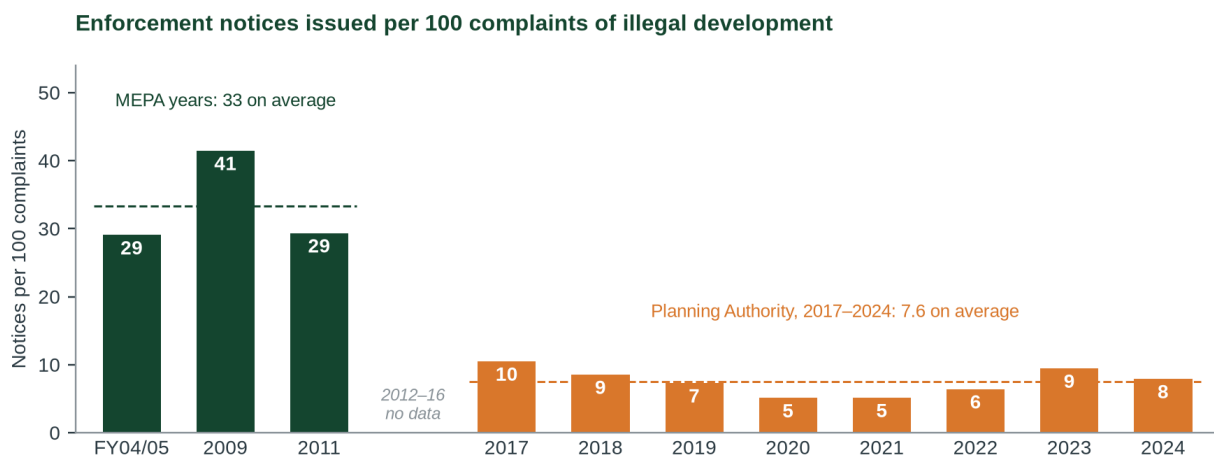
Indicator	Then	Now	Change	Source
Notices a year (average)	1,033 (2001–09)	187 (2020–24)	–82%	[2–6, 9, 13–16]
Complaints of illegal development	2,701 (2009)	2,411 (2024)	–11%	[6, 9]
Complaints, longer run	3,705 (FY 2004/05)	2,411 (2024)	–35%	[3, 9]
Complaints a year (average)	2,105–2,701 (2009, 2011)	~2,860 (2017–24)	higher	[6, 8–16]
Notices per 100 complaints	29–41 (2005–11)	5–10 (2017–24)	–77% (averages)	calculated
Confirmed illegal cases	~1,280 (2018)	~1,200–1,250 (2024)	–2% to –6%	[9, 11]
Confirmed cases, from the peak	~1,820–1,880 (2020–21)	~1,200–1,250 (2024)	–31% to –36%	[9, 13, 14]
Notices per 100 confirmed cases	not reported (MEPA)	7–13 (2018–24)	–	[9, 11–16]

All values in data/cc-014/checks.csv. 2008 and 2012–2016 are missing: the 2012 and 2014 MEPA reports are scanned images and we found no readable report for 2013, 2015 or 2016. For 2024 the Authority reports “circa half” of 2,411 complaints as confirmed (about 1,206), but its four outcome categories sum to 1,252 (52%); hence the range.



Source: Planning Authority annual reports 2018–2024 (2018–2023 read as page images; 2024 pp. 28–30). Confirmed = the stated share (about half to 59%) × complaints received. Hatched: removals given only as a percentage of confirmed cases (2020–2022) or as “the rest of the cases” (2018). The reported outcomes do not always add up to the stated share; the 2024 categories may overlap.

Figure 2. Complaints confirmed as illegal development and how the cases ended, 2018–2024 [9, 11–16]. In every year 7–13 in every 100 confirmed cases ended in a notice. Confirmed cases in 2024 were close to 2018; 2020 and 2021 were the peak.



Source: data/cc-014/checks.csv, from MEPA annual reports 2005–2011 and Planning Authority annual reports 2017–2024. Only years with both counts are shown.

Figure 3. Notices per 100 complaints: 29–41 in the MEPA years we could read, 5–10 under the Planning Authority since 2017.

Reading across the data

- **The headline numbers are accurate.** “Over 1,000 a year” matches 2001, 2002, 2004, 2005 and 2009; “around 200” matches every year from 2018 to 2024 (164–233). The Authority issued 315 in 2017.
- **Complaints did not halve, let alone fall by four-fifths.** They were 2,105 in 2011, peaked at 3,313 in 2020 and were about 2,400 in 2023 and 2024. The Authority stopped accepting anonymous reports in 2024 [18]; in 2022 and 2023 it said about half of all complaints were anonymous [15, 16].
- **Few confirmed cases end in a notice, and that has not changed since 2018.** The Authority confirmed roughly 1,200–1,900 illegal developments a year after complaints, and 7–13 in every 100 led to a notice. In 2024 about six times as many confirmed cases ended in a sanctioning application or removal by the owner ($521 + 482 = 1,003$) as in a notice (162); in 2019, eleven times ($737 + 824$ against 141) [9, 12].
- **The steepest fall lies in the gap.** Notices halved between 2011 (618) and 2017 (315), years for which we found no readable report. The 2017 report already presents the move away from “a total Enforcement system” as the strategy of earlier years [10, p. 18]. MEPA’s 2007 report had attributed an earlier fall partly to closer monitoring of works in progress [5]; the 2024 report attributes the 18% fall that year to persuading contraveners first [9, 18].

FAIRNESS AND CONTEXT: DETERRENCE

Daily fines on enforcement notices were introduced in 2012 [16, p. 24]. The share of new notices carrying them rose from half in 2018 to about 78% in 2023 [11–16], and the Authority calls them “a positive deterrent” [12–16]. Fewer notices that each carry a running fine could deter some illegal building, which is consistent with the chief executive’s view, and research finds that sanctions deter others as well as the offender [19]. The same 2023 report adds that the fines “need to be revised to remain an effective financial deterrent today” [16, p. 24]. Neither point measures how much illegal building there is.

5

Where the evidence points different ways

Q1 Are there fewer illegalities than before?

POSSIBLY SOME; NOT
FOUR-FIFTHS FEWER

EVIDENCE FOR THE CLAIM'S IMPRESSION

Complaints are lower than in 2004/05 (–35%), and confirmed cases fell by about a third from their 2020–21 peak. Most notices now carry daily fines, and in 2017 the Authority reported “a positive shift in compliance” [10]. Higher fines and the sanctioning route may have changed behaviour, as the chief executive says.

EVIDENCE AGAINST

Complaints averaged about 2,860 a year in 2017–2024, above 2009 (2,701) and 2011 (2,105). Confirmed cases in 2024 (about 1,200–1,250) were close to 2018 (about 1,280), and between about 1,200 and 1,900 complaints a year were confirmed as illegal development throughout 2018–2024.

WHY THEY DIFFER, AND WHAT IT MEANS HERE

For this claim: a modest fall in reported illegalities since the mid-2000s is plausible; a fall of the size implied by notices (–82%) is not supported by the Authority’s own figures.

Q2 Why did notices fall?

MAINLY A CHANGE IN
PRACTICE

EVIDENCE FOR THE CLAIM'S IMPRESSION

Fewer new illegalities would mean fewer notices. Owners now more often remove works once contacted, which is the outcome enforcement aims for.

EVIDENCE AGAINST

Notices per complaint fell about four-fold (33 to 7.6 per 100 on average). Every Planning Authority report since 2017 explains the low number of notices by its strategy of issuing them only where contraveners do not cooperate; hundreds of cases a year end in applications to legalise the works [9–16].

WHY THEY DIFFER, AND WHAT IT MEANS HERE

For this claim: the documented explanation is how cases are handled, which the statement does not mention.

Q3 Do complaints measure illegal building?

ONLY PARTLY

EVIDENCE FOR THE CLAIM'S IMPRESSION

Complaints are the main way the Authority learns of illegal works, and the share confirmed (about half to 59%) is reported each year.

EVIDENCE AGAINST

Complaints depend on public vigilance and on rules that changed: construction-site complaints were counted separately in 2018, third-party-damage complaints were included in 2019, and anonymous reports (about half in 2022–23) stopped in 2024. No independent count of illegal building, such as aerial-photo change detection, has been published.

WHY THEY DIFFER, AND WHAT IT MEANS HERE

For this verdict: confidence is moderate because both sides rely on proxies.

6

Testing the claim

Sub-claim	What the evidence shows	Rating
A. “We had times when we issued over 1,000 enforcement notices per year”	1,369 (2001), 1,030 (2002), 1,061 (2004), 1,077 (2005), 1,120 (2009) [2–6].	ACCURATE
B. Now around 200	164–233 a year, 2018–2024 (191 in 2024); 315 in 2017 [9–16].	ACCURATE
C. The fall is due to fewer illegalities	Notices fell 82%; complaints fell 11–35% since 2004–09 and averaged about 2,860 a year in 2017–24. Confirmed cases in 2024 were close to 2018, and only 7–13 in 100 ended in a notice. The Authority attributes the fall to its strategy [9–16].	MISLEADING
D. Over 5,000 cases awaiting direct action; over 90 years to clear	Pending notices: almost 7,000 (end 2018), 6,119 (2019), almost 5,600 (2020) [11–13]; 5,382 (end 2021) [17]. Notices closed by direct action: 27–135 a year in 2017–2020, mean 72 [10–13], which implies about 75 years. Consistent in size.	BROADLY CONSISTENT
E. 1,500 illegalities removed by direct action in 30 years	Notices closed by direct action: 135, 52, 27 and 74 in 2017–2020 [10–13]. 1,500 in 30 years is 50 a year, the same order. No 30-year series found.	PARTLY TESTED

7

Verdict and requests for evidence

VERDICT

MISLEADING

Accurate figures; the explanation leaves out the main documented cause. Confidence: moderate. Based on MEPA and Planning Authority annual reports, which can be shown.

Why. (1) Both figures are accurate. (2) Complaints of illegal development fell far less than notices, and in 2024 about as many complaints were confirmed as illegal (about 1,200–1,250) as in 2018 (about 1,280). (3) Only 7–13 in every 100 confirmed cases now end in a notice, as more cases end in applications to legalise the works or in removal after contact, and the Authority’s own reports give that strategy as the reason for the low number of notices. Presenting the fall in notices as evidence of fewer illegalities therefore gives an inaccurate overall impression, which our scale calls *Misleading*.

What this verdict does not say. It does not say that illegal building has increased, that the persuasion-first approach is wrong, or that anyone acted in bad faith. A fuller statement would read: “*We used to issue over 1,000 notices a year; now about 200, because we issue them only where owners do not cooperate, and most cases end in removal or a sanctioning application. Complaints are about 2,400 a year and about half are still confirmed as illegal.*”

Evidence we are asking for

- ☐ Complaints, confirmed cases, notices and outcomes for 2012–2016, when notices halved, to close the gap in the series.
- ☐ The base of the “confirmed” percentage each year, and counts (not only percentages) of cases closed by removal in 2020–2022.
- ☐ Any analysis behind the statement that illegalities have fallen (for example aerial or satellite surveys).
- ☐ How many confirmed cases each year end in a sanctioning permit, and how many of those permits are granted.
- ☐ The source of the figure of 1,500 direct actions over 30 years, by year.

RIGHT OF REPLY

Before wider circulation this draft should be sent to the Planning Authority with a fixed deadline (suggested 14 days). Under our standards a *Misleading* verdict is not published before that deadline passes. Responses will be appended and the verdict revisited.

8 Limitations

- Complaints and confirmed cases are proxies for illegal building. They depend on public reporting and on Authority rules, which changed (a reporting app was introduced; about half of complaints were anonymous in 2022–23, and anonymous reports stopped in 2024).
- Definitions shift. MEPA reported by financial year until about 2006; the 2011 complaint count excludes sites already under a notice; the 2009 figures add the Gozo Office. The 2017 complaint count is rounded (3,000) and its 315 “enforcement notices” (192 + 123) do not match the 2018 report’s “15% fall” to 219, which implies about 258. The 2018 report counts 1,572 construction-site complaints and 310 construction-site stop notices separately; the 2019 count includes third-party-damage complaints.
- Confirmed cases are approximate: the stated share is applied to complaints received, the base of that share varies, the reported outcomes do not always add up to it, and removals for 2018 and 2020–2022 are derived. The 2020 report says complaints rose by 139 on 2019, but the 2019 report’s count implies 179.
- 2008 and 2012–2016 are missing. Notices halved between 2011 and 2017, so the largest fall is not documented year by year; a steady decline or a sudden policy change in those years would not change the comparison of endpoints, but would change how it is explained.
- 2024 values are from the 2024 report as read on 3 October 2026; it could not be re-read on 5 October (automated access blocked). Pending notices at the end of 2021 are second-hand [17].
- No peer-reviewed study of planning enforcement in Malta was found; the regulatory literature is used for context only and was read as abstracts.

References

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Appendix A: series standards and verdict scale

Every investigation in this series follows the same rules so that verdicts are comparable and challengeable.

Verdict	Meaning
SUPPORTED	Evidence consistently backs the claim as stated.
LARGELY SUPPORTED	Backed by the evidence, with minor caveats that do not change the substance.
NOT SUBSTANTIATED	Stated more strongly than the evidence offered or available allows. May be true in some conditions but has not been shown.
MISLEADING	Omits material facts so that the overall impression is inaccurate, even if individual statements are defensible.
CONTRADICTED	The available evidence points against the claim.

Confidence

High: multiple independent lines of evidence agree. **Moderate:** evidence is relevant but incomplete or indirect. **Low:** evidence is thin, second-hand or conflicting.

Evidence grades

A experiment · B observational study with a control or gradient · C review, guidance or official statistics · D assertion or anecdote. ♦ marks a source known only second-hand.

Standards

- **Quote the speaker, not the headline**, with outlet and date, and link the original where possible.
- **Separate the claim from the evidence offered for it**, and say who made which statement.
- **Grade the evidence** and show differing views side by side where the evidence is unsettled.
- **State what we could not access or verify**, and what would change the verdict either way.
- **Ask for the missing evidence** in specific, answerable requests.
- **Offer a right of reply** before wider circulation and append responses.
- **Correct errors openly** with a version number and change log.
- **Whistle-blow only on evidence:** a verdict of *Misleading* or *Contradicted* requires documents or data that can be shown, not inference.
- **Check every side.** Government, opposition, NGOs and developers are held to the same standard.

Appendix B: revision log

Version	Date	Change
1.0	3 Oct 2026	First issue. Draft pending right of reply from the Planning Authority.
1.1	5 Oct 2026	Corrections: (1) 2020 complaints were called “the highest in the series”; now “the highest we could read after FY 2004/05 (3,705)”. (2) “More than three times as many” cases ending in a sanctioning application or removal as in a notice → “about six times” $((521 + 482) / 162 = 6.2)$. (3) 2019 complaints 3,174 (derived from a news report) → 3,134 (PA Annual Report 2019, p. 17; Figure 1 redrawn). (4) 2024 confirmed cases ~1,200 → ~1,200–1,250 and the 2020–24 change –34% → –31% to –34%, because the four outcome categories sum to 1,252, more than the “circa half” (1,206) reported. Flyer: “Settled by legalising” → “Applications to legalise” (applications, not permits). Verdict and confidence unchanged.
1.2	5 Oct 2026	Upgrade: Planning Authority annual reports 2017–2023 read as Issuu page images and used as the primary series in place of news reports [10–16]; each value recorded with printed page, image URL and SHA-256. (1) Added 2017 (315 notices; about 3,000 complaints) and 2018 (219; 2,560); gap 2008 and 2012–2018 → 2008 and 2012–2016. (2) 2019 notices 228 (derived) → 229 [12, p. 18]; 2023 complaints 2,456 → 2,463 (2,456 is complaints closed) [16, p. 23]; 2020–2023 notices (169, 164, 180, 233) and 2020 complaints (3,313) confirmed; 2021 (3,192) and 2022 (2,804) complaints added. (3) Notices per 100 complaints 29–42 (2005–11) and 5–10 (2019–24) → 29–41 (rounding) and 5–10 (2017–24). (4) New: confirmed cases 2018–2024 with outcomes (Figure 2): ~1,280 in 2018 against ~1,200–1,250 in 2024, so the –31% to –34% since 2020 is now described as from a 2020–21 peak (–31% to –36%); 7–13 notices per 100 confirmed cases. New Figure 3 (notices per 100 complaints); Figure 1 redrawn; the 2024-only outcome chart is now part of Figure 2. (5) Added the Authority’s stated policy (notices “only where contraveners are uncooperative”, 2018 p. 20, 2019 p. 18) and a deterrence note (daily fines since 2012 [16, p. 24]; on 50% → 78% of notices, 2018 → 2023). (6) Sub-claim D now uses primary backlog and direct-action figures (73 → about 75 years); E partly tested (27–135 a year, 2017–2020). (7) The “139 more complaints in 2020” is in the Authority’s own 2020 report, not only in the news report. MaltaToday (2021, 2024) references replaced by the primary reports; references renumbered. Verdict and confidence unchanged.